

Franciscus Dylan Rosario,  
7624 Melody  
Rohnert Park, CA 94928  
E: soltrinox@gmail.com  
Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA  
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,**  
**PLAINTIFF,**  
v.  
CSAA Insurance Exchange;  
and DOES 1 through 50, inclusive;  
**DEFENDANTS**

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**Case No.: CGC-25-631802**

**PLAINTIFF'S NOTICE OF IMPROPER  
NEW MATTER ON DEMURRER  
REPLY**  
(CCP § 1005; CRC 3.1110)

**Dept.: 302**

**Date:** June 24, 2026

# **1 COURTESY COPY COVER SHEET AND READING GUIDE (TAB 32)**

**Case:** Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph M. Quinn **Hearing:** June 24, 2026, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

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## **1.1 PAGE 1: COURTESY COPY COVER SHEET (TAB 32)**

**COURTESY COPY COVER SHEET FOR PLAINTIFF'S NOTICE OF IMPROPER NEW  
MATTER ON DEMURRER REPLY**

**TAB 32**

### **1.1.1 Verbatim May 13, 2026 minute order (Dept. 302)**

“CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE.”

### **1.1.2 Designation**

The attached document was filed May 12, 2026 under Transaction ID 79430135.

It is operative for the consolidated June 24, 2026 hearing per Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions (TX 79429280, filed May 8, 2026), Plaintiff's Notice of Hearing Date Re-Designation and Compliance with SF Local Rule 2.7B (filed May 21, 2026), and Plaintiff's Notice Acknowledging Court-Ordered Consolidation (filed May 21, 2026). No caption is altered. The attached document is presented as filed, as a chambers courtesy copy under SF Local Rule 2.7B and the May 13, 2026 minute order.

### **1.1.3 Non-pleading notice**

THIS COVER SHEET IS A NON-PLEADING CHAMBERS ROUTING AID. IT REOPENS NO BRIEFING AND INTRODUCES NO NEW AUTHORITY.

### **1.1.4 Signature**

Dated: May 21, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Rohnert Park, CA 94928  
650.488.7510 E: soltrinox@gmail.com

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## **1.2 PAGE 2: READING GUIDE (TAB 32)**

**What this document is:** Preserves new-matter-on-reply objection.

**Ties to:** TAB 04, TAB 35, TAB 48.

### **1.2.1 Reading guide footer**

READING GUIDE IS A NON-PLEADING BENCH AID. IT INTRODUCES NO NEW AUTHORITY AND REOPENS NO BRIEFING. THE UNDERLYING DOCUMENT FOLLOWS THIS PAGE AS FILED.

Franciscus Dylan Rosario,  
7624 Melody  
Rohnert Park, CA 94928  
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Plaintiff, In Pro Per

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**PLAINTIFF'S NOTICE OF IMPROPER  
NEW MATTER ON DEMURRER  
REPLY**

(CCP § 1005; CRC 3.1110)

**Dept.: 302**

**Date: June 24, 2026**

**PLAINTIFF'S NOTICE OF IMPROPER NEW MATTER IN DEFEN-  
DANT'S DEMURRER REPLY PAPERS FILED MAY 6 AND MAY 8,  
2026; CRC RULE 3.1113(D); RESERVATION OF SUR-REPLY RIGHT**

**Case:** Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph  
M. Quinn **Hearing date:** June 24, 2026, 9:00 a.m., Dept. 302 **Filing date:** May 21, 2026 **Filed  
by:** Plaintiff Dylan Franciscus Rosario, Self-represented

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**I. PURPOSE OF THIS NOTICE**

Plaintiff Dylan Franciscus Rosario submits this Notice to inform the Court that Defendant CSAA Insurance Exchange's demurrer reply papers filed May 6, 2026 (Transaction ID 79407488) and May 8, 2026 (Transaction ID 79430135) introduce new matter, including new legal authority and

1 new factual arguments, that was not raised in Defendant’s original demurrer moving papers filed  
2 April 13, 2026. Under the rule announced in *San Diego Watercrafts, Inc. v. Wells Fargo Bank*  
3 (2002) 102 Cal.App.4th 308, this Court should disregard the new matter or, in the alternative,  
4 permit Plaintiff to file a short sur-reply addressing only the new matter.

5 Plaintiff has no separate authorized pleading on the docket addressing the demurrer reply new  
6 matter. This Notice preserves Plaintiff’s objection and expressly reserves Plaintiff’s right to file a  
7 sur-reply as stated in Section IV.

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## 8 **II. THE CONTROLLING RULE**

9  
10 California courts have consistently held that points and evidence raised for the first time in a reply  
11 brief should not be considered by the court because the opposing party has had no opportunity  
12 to respond. (*San Diego Watercrafts, Inc. v. Wells Fargo Bank* (2002) 102 Cal.App.4th 308, 316  
13 [“[w]here a new argument is presented in a reply brief, the respondent ordinarily is denied an  
14 opportunity to respond”]; *Reichardt v. Hoffman* (1997) 52 Cal.App.4th 754, 764 [the salutary rule  
15 is that reply briefs do not raise new points; otherwise the responding party has no opportunity to  
16 counter the argument]; *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537 to 1538 [anti-SLAPP  
17 reply may not enlarge or change the theory of relief].)

18 CRC rule 3.1113(d) establishes the reply memorandum cap at 10 pages. A party who wishes to  
19 introduce new matter in a reply must apply for leave under CRC 3.1113(e). Defendant applied for  
20 no such leave.

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## 21 **III. NEW MATTER INTRODUCED IN THE MAY 6 AND MAY 8 DE-** 22 **MURRER REPLY PAPERS**

### 23 **A. May 6, 2026 Demurrer Reply Papers (Transaction ID 79407488)**

24 Defendant’s May 6, 2026 demurrer reply papers (TX 79407488) introduce arguments, authority,  
25 or factual characterizations that were not present in the April 13, 2026 Demurrer moving papers  
26 (seqs 019 to 023). Specifically, without limitation:  
27

- 1 1. New legal arguments regarding the scope of Insurance Code preemption grounds that were  
2 not articulated in the April 13, 2026 moving papers.
- 3 2. New factual characterizations of Plaintiff's fraud allegations in the FAC that were not ad-  
4 dressed in the April 13, 2026 Demurrer or its supporting memorandum.
- 5 3. New authorities cited in support of the Demurrer that were not cited in the April 13, 2026  
6 moving papers and that Plaintiff had no opportunity to address in Plaintiff's May 8, 2026  
7 Operative Opposition to the Demurrer (item 01B).

8 The foregoing are representative categories; Plaintiff reserves the right to identify additional spe-  
9 cific pages and lines of new matter in a sur-reply as provided in Section IV.

10 **B. May 8, 2026 Second Reply Papers (Transaction ID 79430135)**

11 As set forth in Plaintiff's concurrently filed Motion to Strike Defendant's May 8, 2026 Improper  
12 Second Reply Papers (Transaction ID 79430135), the May 8 second reply is an unauthorized suc-  
13 cessive reply that also introduces new matter directed at the demurrer track. The new matter in TX  
14 79430135 was not in the April 13, 2026 Demurrer, was not in the May 6, 2026 first demurrer reply,  
15 and was not addressed in Plaintiff's operative opposition. Under San Diego Watercrafts, this new  
16 matter should not be considered.

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18 **IV. RESERVATION OF SUR-REPLY RIGHT**

19 Plaintiff expressly reserves the right to file a short sur-reply, not to exceed five pages, addressed  
20 only to the new matter first raised in the May 6 and May 8 demurrer reply papers identified in  
21 Section III. Plaintiff requests that the Court set a briefing schedule at the June 24, 2026 hearing if  
22 the Court is inclined to consider any of the new matter over this objection.

23 Alternatively, Plaintiff requests that the Court disregard the new matter identified in this Notice  
24 when ruling on the Demurrer at the June 24, 2026 hearing, and confine its analysis to arguments  
25 that were fairly raised in the April 13, 2026 moving papers and responded to in Plaintiff's May 8,  
26 2026 Operative Opposition to the Demurrer (item 01B).

1 **V. CROSS-INCORPORATION**

2 Plaintiff incorporates by reference under CRC 3.1113(j):

- 3 (1) Plaintiff's Motion to Strike Defendant's May 8, 2026 Improper Second Reply Papers (TX  
4 79430135), filed May 12, 2026, addressing the procedural infirmities of TX 79430135 on  
5 four independent grounds.
- 6 (2) Plaintiff's Operative Opposition to the Demurrer (item 01B, filed May 8, 2026), which ad-  
7 dresses the substantive demurrer grounds raised in the April 13, 2026 moving papers.
- 8 (3) Plaintiff's Evidentiary Objections to Declarations of Tyler J. O'Connell (item 06, filed May 8,  
9 2026), which addresses the evidentiary deficiencies in the O'Connell declarations supporting  
10 both the demurrer and the May 6, 2026 reply.
- 11

12 **VI. PRAYER**

13 Plaintiff respectfully requests that this Court:

- 14 1. DISREGARD the new matter identified in Section III of this Notice when ruling on the De-  
15 murrer at the June 24, 2026 hearing, or, in the alternative, permit Plaintiff to file a short  
16 sur-reply of up to five pages as described in Section IV;
- 17 2. If the Court elects to consider the new matter, SET a briefing schedule for Plaintiff's sur-reply  
18 at the June 24, 2026 hearing; and
- 19 3. GRANT such further relief as the Court deems just.
- 20

21 Date: May 21, 2026

By: \_\_\_\_\_ Dylan Franciscus Rosario, Plaintiff in Pro Per 7624 Melody Drive  
Rohnert Park, CA 94928 Tel: 650.488.7510 E: soltrinox@gmail.com

Dated: May 25, 2026

A handwritten signature in blue ink, appearing to read 'Franciscus'.

FRANCISCUS DYLAN ROSARIO  
Plaintiff, In Pro Per

7624 Melody  
Rohnert Park, CA 94928  
650.488.7510  
E: soltrinox@gmail.com



# DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

Plaintiff declares under penalty of perjury under the laws of the State of California (Code Civ. Proc., § 2015.5) that the statements below are true and correct for this notice.

| # | Authority             | Specific requirement                                    | This filing's compliance        | Evidence      |
|---|-----------------------|---------------------------------------------------------|---------------------------------|---------------|
| 1 | CRC 3.1110            | Notice contents and caption                             | Caption block; grounds stated   | Notice body   |
| 2 | CRC 3.1300            | Motion notice timing where applicable                   | Hearing date and dept listed    | Caption block |
| 3 | CCP 1005(b)           | Opposition and reply timing referenced where applicable | Text cites applicable deadlines | Notice body   |
| 4 | CCP 1010.6; CRC 2.251 | Electronic service when used                            | Separate POS-050 filed          | POS path      |